

[doc. web n. 9916737]
Provision of May 17, 2023
Register of provisions
No. 198 of May 17, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, deputy secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the verification report prepared by the Special Unit for Privacy Protection and
Technological Fraud of the Guardia di Finanza, which identified the
presence of a video surveillance system at the property owned by MSM Immobiliare s.r.l. (hereinafter,
the Company), not compliant with
the provisions of Article 13 of the Regulation;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the deputy secretary general pursuant to Article 15
of the Guarantor's regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The verification and the initiation of the procedure.

On December 17, 2021, Aspell s.r.l. reported
the installation, by M.S.M. Immobiliare s.r.l.
at its property located in Grumello del Monte
(BG), via Roma 55, on the land adjacent to that owned by
Aspell s.r.l., of a video surveillance system not compliant with the regulations regarding
the protection of personal data, as the
cameras were capable of capturing areas beyond those pertaining to the property and were not
indicated by appropriate informational signs.

Following a request from the Office, the
Special Unit for Privacy Protection and Technological Fraud,
with a note dated May 27, 2022, transmitted to this Authority
the report of the inspection carried out on May 24, 2022
at the registered office of M.S.M. Immobiliare s.r.l., from which it was noted the presence of a
functioning video surveillance system, consisting of 7
cameras, of which 5 were positioned externally
to the property and 2 internally, not adequately
indicated by suitable informational signs, as
the only sign detected was found to be lacking
the indication of the data controller.

During the operations, the Company stated
that: "the sign is not present on the back

of the property near the boundary with the property of Aspell s.r.l.” as they had been removed following an act of vandalism.

The party also represented that: “the detailed documentation regarding the information notice has not been prepared as the property is unused”; regarding this, the party committed to draft it as soon as possible and committed “to put up a compliant sign adjacent to all the cameras as soon as possible.”

Based on the findings made, as per the aforementioned report, the Office proceeded to notify M.S.M. Immobiliare s.r.l. of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Article 5, paragraph 1, letter a) and 13 of the Regulation (note dated September 13, 2022, prot. No. 48167).

With a note dated October 13, 2022, the Company sent to the Guarantor defensive writings declaring to have

“provided to affix near each camera as well as at each entrance of its building on via Bondraccolo – thus also on the entrance located at the back of the building – a pair of informational signs, for a total of 4 (four) pairs indicating the monitored area, the purpose as well as the references of the data controller”; providing adequate documentary proof of this.

2. The legal framework of the processing carried out

The use of video surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, with the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a monitored area.”

For this purpose, the data controller must affix suitable informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance, published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while additional mandatory details can be provided by other means (second level). In the guidelines, it is also provided that “Such information can be provided in combination with an icon to give, in a clearly visible, intelligible, and clearly

legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations." The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance, before entering the monitored area (approximately at eye level) "to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary."

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made by the Guardia di Finanza, it emerged that the video surveillance system, installed at the property owned by the party located in Grumello del Monte (BG), via Roma 55, was active and functioning, and that appropriate signs containing the information referred to in Article 13 of the Regulation had not been posted. It is therefore evidenced in the documents that the party has carried out processing of personal data through a video surveillance system, in the absence of the required information. Such conduct is in contrast with what is established by Article 5, paragraph 1, letter a) and Article 13 of the Regulation, according to which the data controller is required to process data in a transparent manner (Article 5, paragraph 1, letter a) of the Regulation) and to provide the data subject with all information regarding the essential characteristics of the processing (Article 13 of the Regulation).

4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, in the absence of the information referred to in Article 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;
- the absence of specific previous violations by the company related to breaches of the data protection regulations;
- the circumstance that the Company, as the data controller, cooperated with the Authority during the proceedings by arranging appropriate informational signs and demonstrating compliance with the legal obligation.

In light of all the elements outlined above, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €1,000 (one thousand). In this context, also considering the type of violation established, which concerned the principles of personal data protection, it is noted, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, that it is necessary to proceed with the publication of this provision on the Guarantor's website.

Finally, it is believed that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the illegality of the processing carried out by M.S.M. Immobiliare s.r.l., based in Grumello del Monte (BG), via Roma 55 (VAT No. 03950430169) through the use of the video surveillance system installed at the property owned by it, as stated in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation;

ORDERS

M.S.M. Immobiliare s.r.l., based in Grumello del Monte (BG), via Roma 55, (VAT No. 03950430169) to pay the sum of €1,000.00 (one thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

therefore the same M.S.M. Immobiliare s.r.l., to pay the sum of €1,000.00 (one thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is noted that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011 provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Guarantor's website and believes that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, by submitting a petition to the ordinary court of the location specified in the same Article 10, within thirty days from the date of communication of the provision itself, or within sixty days if the appellant resides abroad.

Rome, May 17, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi